

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Kastner	Team: Team # 2	CCRB Case #: 201301168	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 02/15/2013 2:00 PM	Location of Incident: Academy Street between Sherman Avenue and Vermilyea Avenue	Precinct: 34	18 Mo. SOL 8/15/2014	EO SOL 8/15/2014	
Date/Time CV Reported Sat, 02/16/2013 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/22/2013 4:16 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Mchugh	04363	925715	034 PCT
2. POM Carl Bennett	29180	929704	034 PCT
3. POM Jose Rosario	02128	934136	034 PCT
4. Officers			

Officer(s)	Allegation	Investigator Recommendation
A.SGT Michael Mchugh	Abuse: PO Michael Mchugh stopped § 87(2)(b)	
B.POM Jose Rosario	Abuse: PO Jose Rosario stopped § 87(2)(b)	
C.POM Carl Bennett	Abuse: PO Carl Bennett stopped § 87(2)(b)	
D.POM Carl Bennett	Abuse: PO Carl Bennett searched § 87(2)(b)	
E. Officers	Abuse: Officers strip-searched § 87(2)(b)	

Case Summary

On February 16, 2013, § 87(2)(b) filed a complaint with IAB (log # 2013-7497), which was received by the CCRB on February 22, 2013. Between February 26, 2013 and March 5, 2013, four attempts to call § 87(2)(b) were made. On March 5, 2013, § 87(2)(b) provided a telephone statement and scheduled his CCRB interview; however, between March 15, 2013 and March 22, 2013, § 87(2)(b) requested that he reschedule his appointment three times. On March 25, 2013, § 87(2)(b) missed his scheduled telephone interview. On that day, a voicemail message was left, a verbal message was left for him with his mother, and an unreturned letter was sent. Between March 28, 2013 and April 8, 2013, two calls were placed to each of § 87(2)(b)'s contact numbers, a voicemail message was left, a second verbal message was left for him with his mother, and an email was sent. A search of the NYC Department of Correction Inmate Tracking System revealed that § 87(2)(b) is not currently incarcerated.

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date